

The Sheekakai Grading and Marking Rules, 2008

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The Sheekakai Grading and Marking Rules, 2008

UNION OF INDIA

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The Sheekakai Grading and Marking Rules, 2008

Rule THE-SHEEKAKAI-GRADING-AND-MARKING-RULES-2008 of 2008

Published on 31 January 2008

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The Sheekakai Grading and Marking Rules, 2008

Published vide Notification No. G.S.R. 66(E), dated 31st January, 2008

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 66(E). - Whereas the draft of Sheekakai Grading and Marking Rules, 2007, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) was published vide notification Number G.S.R. 153 dated 6th July, 2007, in the Gazette of India, Part II, Section 3, Sub-section (i), inviting objections and suggestions from all persons likely to be affected thereby within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the public.

And whereas copies of the said notification were made available to the public on 23rd August, 2007. And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered.

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937, and in supersession of Sheekakai Powder Grading and Marking Rules, 1973, the Central Government hereby makes the following rules, namely:-

Rules

1.

Short title, application and commencement.

(1)

These rules may be called the Sheekakai Grading and Marking Rules, 2008.

(2)

They shall apply to Sheekakai Pods and Sheekakai Powder obtained from pods of *Acacia concinna* D.C. [*Acacia sinuata* (lour) Merryl syn].

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(i)

"Authorized packer" means a person or body of persons who has been granted the certificate of authorization to grade and mark Sheekakai pods and Sheekakai powder in accordance with the grade standards and procedure prescribed under these rules;

(ii)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(iii)

"Certificate of Authorization" means a certificate issued under the provisions of General Grading and Marking Rules, 1988 authorizing a person or a body of persons to grade and mark Sheekakai pods and Sheekakai powder with the grade designation mark;

(iv)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(v)

"Grade designation" means a designation prescribed as indicative of the quality of Sheekakai pods and Sheekakai powder shall be as set out in column 1 of Schedules II and III;

(vi)

"Grade designation mark" means the "Agmark Insignia" referred to in rule 3;

(vii)

"Schedule" means a Schedule appended to these rules.

(viii)

"Sheekakai pods" mean pods obtained from *Acacia concinna* D.C. [*Acacia sinuata* (lour) Merryl syn.].

(ix)

"Sheekakai powder" means the produce obtained by grinding pods of *Acacia concinna* D.C. [*Acacia sinuata* (lour) Merryl syn.].

3.

Grade designation mark.

- The grade designation mark shall consist of "Agmark Insignia" consisting of a design incorporating the certificate of authorization number, the word "Agmark", name of commodity and grade designation resembling the one as set out in Schedule I.

4.

Quality.

- The quality of Sheekakai Pods and Sheekakai Powder shall be as set out in schedule II and III.

5.

Method of packing.

(1)

Sheekakai pods and Sheekakai powder shall be packed only in sound, clean and dry containers made of jute, cardboard cartons, cloth bags (for Sheekakai Powder suitable inner linings shall be used), laminated polyethylene or polypropylene or high density polyethylene bags, pouches or any other packaging material duly approved by the Agricultural Marketing Adviser or any officer authorized by him in this behalf;

(2)

The container shall be free from any insect infestation or fungus contamination and also free from any undesirable or obnoxious smell;

(3)

Sheekakai pods or powder shall be packed in such a way as to protect the produce properly. The container shall be securely closed and sealed in a manner approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf;

(4)

The materials used inside the package must be new, clean and of such a quality as to avoid causing any damage to the produce;

(5)

The use of materials particularly of paper or stamps bearing trade specifications is permitted provided the printing or labeling has been done with non toxic ink or glue;

(6)

Each package shall contain Sheekakai pods or powder of one grade designation only. Suitable number or small packets of Sheekakai pods or powder containing graded material of the same lot/batch and grade designation may be packed in a master container such as jute bags, wooden cases, cardboard cartons etc., with details on master containers;

(7)

The Sheekakai pods and powder shall be packed in the pack sizes as per instructions of Agricultural Marketing Adviser issued from time to time.

6.

Method of Marking.

(1)

The grade designation mark shall be securely affixed to or printed on each packages in manner approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, 1988.

(2)

In addition to the grade designation mark, the following particulars shall be clearly and indelibly marked on each package, namely;

(a)

Name of the commodity;

(b)

Variety (optional);

(c)

Grade designation;

(d)

Name and address of the packer;

(e)

Net weight/No. of unit;

(f)

Storage condition if any (optional);

(g)

Place of origin;

(h)

Date of packing;*

(i)

Best before date (wherever applicable);

(j)

Lot/Batch number;

(k)

Maximum retail price (inclusive of all taxes);

(l)

Place of packing/manufacturing;

(m)

Any other particulars as may be specified by the Agricultural Marketing Adviser.

(3)

The ink used for marking on packages shall be of such quality which may not contaminate the product.

(4)

The authorized packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorized by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same do not indicate quality other than that indicating by the grade designation mark affixed to the graded packages in accordance with these rules.

7.

Sheekakai Pods and Sheekakai Powder may be graded and marked as per buyer's requirements for export provided minimum requirements specified in the relevant schedule are met.

8.

Special conditions for grant of certificate of authorization: In addition to the conditions specified under the sub-rule (8) of rule 3 of the General Grading and Marking Rules, 1988, the following shall be the special conditions of every certificate of authorization issued for the purpose of these rules:-

(1)

The authorized packer shall either set up his own laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, 1988 for testing the quality of Sheekakai pods and powder or have access to the State Grading Laboratory or Private Commercial Laboratory approved for the purpose;

(2)

The premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement. The personnel engaged in these operations shall be in sound health and free from any infectious contagious or communicable diseases;

(3)

The premises shall have adequate storage facilities with pucca floor and free from rodent and insect infestation;

(4)

The authorized packer and the approved chemist shall observe all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued from time to time by the Agricultural Marketing Adviser or any other officer authorized by him in this behalf from time to time.

* The date of packing shall be the date of completion of the analysis of the sample.

I

(See Rule-3)

Design of the Agmark Insignia

Name of the Commodity

Grade

II

(See rules 2 and 4)

Grade Designation and Quality of Sheekakai Pods

1. Sheekakai pods shall be matured and dried fruits obtained from varieties of *Acacia concinna* D.C. [*Acacia sinuata* (lour) Merryl syn].

2. Minimum Requirements:-

(i)

Sheekakai pods shall be

- (a)
sound;
- (b)
clean, well dried;
- (c)
uniform in colour, shape and size;
- (d)
free from insect infestations, live insect, dead insects, insect fragments, mould, mites, larvae and added colouring matter;
- (e)
free from fermented and musty odours;
- (f)
free from fungal growth.

(ii)

Sheekakai pods shall be sufficiently developed and display satisfactory ripeness.

3. Criteria for grade designation:

Grade designation

Special Characteristics

Moisture, % by mass

Loose seeds % by mass

Organic extraneous matter % by mass

Inorganic extraneous matter % by
mass

Damaged and insect bored pods, % by
mass

Max.

Max.

Max.

Max.

Max.

1

2

3

4

5

6

Special

10.0

Nil

1.0

Nil

5.0

Standard

12.0

1.0

2.0

0.5

7.0

General

14.0

2.0
3.0
1.0
10.0

Explanations:

(a)

"Damaged and insect bored pods" includes pods which are damaged or which have been bored or attacked by weevils or other insects;

(b)

"Inorganic extraneous matter" includes dust, dirt, stones, earth or any other inorganic foreign matter;

(c)

"Organic extraneous matter" includes straw or chaff, stalks, stems and other organic foreign matter.

4. Other Requirements: - Sheekakai Pods shall be in merchantable condition.

III

(See rules 2 and 4)

Grade Designation and Quality of Sheekakai Powder

1. Sheekakai powder shall be obtained from clean, well dried, matured and wrinkled pods of varieties *Acacia concinna* D.C. [*Acacia sinuata* (lour) Merryl syn.] by powdering through suitable means.

2. Minimum Requirements: -

(i)

Sheekakai powder shall be.

(a)

clean, well dried and free from lumps;

(b)

uniform in colour;

(c)

free of any visible foreign matter;

(d)

free from insect infestations, live insect, dead insects; insect fragments, mould, mites, larvae, rodent hair and excreta;

(e)

free from fermented and musty odors;

(f)

free from dirt, extraneous matter like added colouring matter and other type of adulterants;

(g)

free from fungal growth.

3. Criteria for grade designation :

Grade designation

Special Characteristics

Moisture, % by mass

Total ash, % by mass

Acid Insoluble ash, % by mass

Crude fibre % by mass

Alcohol soluble extract % by mass

Retention on 500 micron sieve % by mass

(Max.)

(Max.)

(Max.)

(Max.)

(Mini.)

(Max.)

1
2
3
4
5
6
7

Special

9.0
5.0
1.0
10.0
35.0
1.0

Standard

11.0
8.0
3.0
12.0
30.0
3.0

General

13.0
10.0
4.0
15.0
25.0
5.0

4. Other Requirements : - Sheekakai powder shall be in merchantable condition.

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